

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #02	CCRB Case #: 201702768	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 04/07/2017 7:55 PM	Location of Incident: 2805 Decatur Avenue	18 Mo. SOL 10/7/2018	Precinct: 52
Date/Time CV Reported Fri, 04/07/2017 9:03 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 04/07/2017 9:03 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edgar Rivera	05576	955381	052 PCT
2. POF Christina Moncion	11670	954455	052 PCT
3. POM Daniel Trancucci	12930	951351	052 PCT
4. POF Gina Mestre	11607	955191	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Trancucci	Discourtesy: Police Officer Daniel Trancucci spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Edgar Rivera	Discourtesy: Police Officer Edgar Rivera spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POF Gina Mestre	Discourtesy: Police Officer Gina Mestre spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POF Christina Moncion	Discourtesy: Police Officer Christina Moncion spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POF Gina Mestre	Discourtesy: Police Officer Gina Mestre spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Edgar Rivera	Abuse: Police Officer Edgar Rivera threatened § 87(2)(b) with the use of force.	F . Substantiated
G . POM Daniel Trancucci	Abuse: Police Officer Daniel Trancucci refused to provide his name and shield number to § 87(2)(b)	G . Unfounded
H . POM Edgar Rivera	Abuse: Police Officer Edgar Rivera refused to provide his name and shield number to § 87(2)(b)	H . Unfounded
I . POF Gina Mestre	Abuse: Police Officer Gina Mestre refused to provide her name and shield number to § 87(2)(b)	I . Unsubstantiated
J . POF Christina Moncion	Abuse: Police Officer Christina Moncion refused to provide her name and shield number to § 87(2)(b)	J . Unsubstantiated
K . POM Daniel Trancucci	Abuse: Police Officer Daniel Trancucci refused to provide his name and shield number to § 87(2)(b)	K . Unfounded
L . POM Edgar Rivera	Abuse: Police Officer Edgar Rivera refused to provide his name and shield number to § 87(2)(b)	L . Unfounded
M . POF Gina Mestre	Abuse: Police Officer Gina Mestre refused to provide her name and shield number to § 87(2)(b)	M . Unsubstantiated

Case Summary

On April 7, 2017, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board via the on-line website. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

On April 7, 2017, at approximately 7:55 p.m. in the vicinity of 2805 Decatur Avenue in the Bronx, § 87(2)(b) was a passenger in a black 2012 Kia Altima, driven by her fiancé § 87(2)(b). § 87(2)(b) parked at a fire hydrant and exited the car, while § 87(2)(b) remained in the front passenger seat. § 87(2)(b) had walked approximately six feet away from the car when Police Officer Gina Mestre, Police Officer Christina Moncion, Police Officer Daniel Trancucci and Police Officer Edgar Rivera of the 52nd Precinct approached § 87(2)(b) in the car. Police Officer Trancucci opened the front driver's side door. § 87(2)(b) asked Police Officer Trancucci what he was doing and he allegedly told her to "Shut the fuck up," and that they could do "Whatever the fuck [they] wanted," (**Allegation A**). § 87(2)(b) also alleged that all officers told her to "Shut the fuck up," (**Allegations B, C and D**). § 87(2)(b) also alleged that Police Officer Mestre told him to "Shut the fuck up" (**Allegation E**). § 87(2)(b) returned to the car and started arguing with Police Officer Rivera. Police Officer Rivera allegedly told § 87(2)(b) to meet him at the stationhouse so that they could fight when he took off his uniform (**Allegation F**).

§ 87(2)(b) allegedly asked each of the four officers for their name and shield numbers and none of them verbally provided it (**Allegations G, H, I, and J**). § 87(2)(b) allegedly requested the name and shield numbers of Police Officer Trancucci, Police Officer Rivera and Police Officer Mestre and none of them verbally provided it (**Allegations K, L and M**). Police Officer Trancucci issued the car a ticket for being parked next to a fire hydrant (Board Review 11). Police Officer Trancucci allegedly told § 87(2)(b) and § 87(2)(b) that they could find his information on the ticket.

No video footage was found for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation during her telephone statement. § 87(2)(b) declined to mediate. § 87(2)(g)
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As per the New York City's Comptroller's Office no Notice of Claim has been filed in regards to this incident as of July 12, 2017.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (Board Review 01 and 02).

- Police Officer Trancucci has been a member of the NYPD for six years and has one prior allegation against him which was not substantiated (see officer history). § 87(2)(g)
- Police Officer Mestre has been a member of the NYPD for four years and has no prior allegations against her (see officer history).
- Police Officer Moncion has been a member of the NYPD for four years and has six allegations against her within three complaints, none of which were substantiated (see officer history). § 87(2)(g)
- Police Officer Rivera has been a member of the NYPD for four years and has two allegations against him within two complaints neither of which was substantiated (see officer history). § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(b) made discourtesy allegations regarding officers towards § 87(2)(b) against whom § 87(2)(b) himself made no discourtesy allegations. § 87(2)(g)

Allegation A –Discourtesy: Police Officer Daniel Trancucci spoke discourteously to § 87(2)(b)

Allegation B-Discourtesy: Police Officer Edgar Rivera spoke discourteously to § 87(2)(b)

Allegation C-Discourtesy: Police Officer Gina Mestre spoke discourteously to § 87(2)(b)

Allegation D- Discourtesy: Police Officer Christina Moncion spoke discourteously to § 87(2)(b)

Allegation E- Discourtesy: Police Officer Mestre spoke discourteously to § 87(2)(b)

Allegation G-Abuse of Authority: Police Officer Daniel Trancucci refused to provide his name and shield number to § 87(2)(b)

Allegation H-Abuse of Authority: Police Officer Edgar Rivera refused to provide his name and shield number to § 87(2)(b)

Allegation I-Abuse of Authority: Police Officer Gina Mestre refused to provide her name and shield number to § 87(2)(b)

Allegation J- Abuse of Authority: Police Officer Christina Moncion refused to provide her name and shield number to § 87(2)(b)

Allegation K- Abuse of Authority: Police Officer Daniel Trancucci refused to provide his name and shield number to § 87(2)(b)

Allegation L- Abuse of Authority: Police Officer Edgar Rivera refused to provide his name and shield number to § 87(2)(b)

Allegation M- Police Officer Gina Mestre refused to provide his name and shield number to

§ 87(2)(b)

On April 12, 2017, § 87(2)(b) and § 87(2)(b) provided telephone statements to the CCRB (Board Review 05 and 06). On April 24, 2017, a fax including § 87(2)(b)s and § 87(2)(b)s notarized written statements were received by the CCRB (Board Review 07). On April 27, 2017, telephone interviews were conducted with § 87(2)(b) and § 87(2)(b). On June 2, 2017, § 87(2)(b) and § 87(2)(b) answered follow-up questions over the telephone (Board Review 08 and 09). Police Officer Rivera was interviewed on June 1, 2017. Police Officer Trancucci was interviewed on June 2, 2017. Police Officer Mestre was interviewed on June 8, 2017. Police Officer Moncion was interviewed on June 29, 2017.

It is undisputed that § 87(2)(b) was parked at a fire hydrant and that Police Officer Trancucci issued the car a summons for this. When the officers first approached the car § 87(2)(b) was out of the car. It is undisputed that § 87(2)(b) and Police Officer Rivera had an argument when § 87(2)(b) returned to the car.

§ 87(2)(g)

As per § 87(2)(b)s telephone statement, when the officers approached the car, Police Officer Trancucci opened the driver's side door of the car. § 87(2)(b) asked Police Officer Trancucci what he was doing and told him that he could not open her car door. Police Officer Trancucci told § 87(2)(b) that they could do "whatever the fuck [they] wanted," and informed § 87(2)(b) that they were not supposed to be parked there. When § 87(2)(b) tried to explain why they had parked there, Police Officer Trancucci became "loud" and § 87(2)(b) returned to the vehicle. Police Officer Rivera and § 87(2)(b) started arguing and Police Officer Rivera asked § 87(2)(b) if he was going to "Come and see me" and told § 87(2)(b) "You know where I change my uniform. You can see me after that." § 87(2)(b) told Police Officer Rivera that he would not be provoked into hitting an officer. He and Police Officer Rivera told one another to "Shut the fuck up." In her sworn statement, § 87(2)(b) added that when Police Officer Rivera was arguing with § 87(2)(b) Police Officer Rivera told § 87(2)(b) to meet him at the stationhouse and, "I could fuck you up."

As per § 87(2)(b) she and § 87(2)(b) asked each officer directly for their name and badge numbers. Police Officer Trancucci and Police Officer Rivera replied that they did not have to "give [them] shit." Police Officer Trancucci told § 87(2)(b) and § 87(2)(b) that they could find his name on the ticket he was writing. Police Officer Mestre and Police Officer Moncion told § 87(2)(b) and § 87(2)(b) to "Shut the fuck up." In her telephone statement, § 87(2)(b) stated that when they requested Police Officer Rivera's shield number, he told them to come and see him.

§ 87(2)(g)

§ 87(2)(b) only made a discourtesy allegation against Police Officer Mestre and only requested name and shield numbers from Police Officer Trancucci, Police Officer Rivera, and Police Officer Mestre. In his telephone statement, § 87(2)(b) provided Police Officer Rivera's response to his request for his name and shield number as, "Why don't you come to my side and take my badge off of me, to get my badge and name."

Police Officer Rivera, Police Officer Trancucci, Police Officer Moncion and Police Officer Mestre were consistent that they were driving down Decatur Avenue when they encountered a car that was double parked. They sounded their police siren or horn. When the driver, § 87(2)(b) returned to the car he drove his car across the intersection and parked at a fire hydrant, exited the car and returned to an ice cream truck. The officers exited their vehicle and approached the car that was parked at the fire hydrant, at which point they noticed that there was a passenger in the car, § 87(2)(b)

Police Officer Rivera did not remember if Police Officer Trancucci opened the driver's side door when he approached the car. Police Officer Rivera never told § 87(2)(b) that he could "do whatever the fuck he wanted to," and he did not hear any other officer say this. Approximately thirty seconds after the officers had approached the car, § 87(2)(b) returned to the car acting "extremely irate," and cursed at the officers until the summons was issued. When Police Officer Rivera told § 87(2)(b) that he could not double park to get ice cream, § 87(2)(b) told Police Officer Rivera, "Mind [your] fucking business," and "You don't know who I know." § 87(2)(b) told Police Officer that he would come to the stationhouse to fight him and he repeatedly called Police Officer Rivera a "bitch." Police Officer Rivera described his own initial demeanor as calm, but once § 87(2)(b) started to antagonize him, he may have become loud. § 87(2)(b) told Police Officer Rivera that he was going to "kick his ass." At some point Police Officer Rivera told § 87(2)(b) to "prove it." When asked if he ever heard an officer ask § 87(2)(b) if he was going to "come and see [him]" and told him, "You know where I change my uniform," Police Officer Rivera stated that he may have said this to § 87(2)(b). Police Officer Rivera did not believe that these statements were a suggestion that he would fight § 87(2)(b).

At some point, § 87(2)(b) asked for Police Officer Rivera's shield number. § 87(2)(b) had his phone out at this time, so he told § 87(2)(b) that he could, "zoom in" and take a picture of his badge number. Police Officer Trancucci offered his name and shield number multiples time to § 87(2)(b) to which § 87(2)(b) replied that he had it on the summons. Police Officer Rivera did not remember § 87(2)(b) or § 87(2)(b) requesting the name and shield numbers of Police Officer Mestre or Police Officer Moncion. At no point did any of the officers refuse to provide their names and/or shield numbers. Police Officer Rivera never heard an officer say that they "Didn't have to give [them] shit." Police Officer Rivera did not remember using any profanity during this incident or hearing any other officer do so. Police Officer Rivera did not say nor did hear any officer tell § 87(2)(b) or § 87(2)(b) to "Shut the fuck up."

As per, Police Officer Trancucci, he asked § 87(2)(b) if she would talk to him by rolling down a window or opening a car door. § 87(2)(b) did not respond and did not do either. Police Officer Trancucci in turn opened the driver's side door and asked her if she had a valid driver's license to

move the vehicle from the fire hydrant. Police Officer Trancucci never told her, “We can do whatever the fuck we want to,” and he did not hear any other officer do so. Police Officer Trancucci retrieved his summons book and began writing the summons when § 87(2)(b) returned to his vehicle. § 87(2)(b) asked why Police Officer Trancucci was writing as summons. Police Officer Trancucci replied that § 87(2)(b) was not parked in a legal parking space and that he had asked § 87(2)(b) if she could move the car but she refused.

As Police Officer Trancucci continued to write the summons, § 87(2)(b) began talking to Police Officer Rivera. Their conversation became increasingly loud, but Police Officer Trancucci did not remember what was said between them. § 87(2)(b) told Police Officer Rivera that he was going to follow him back to the stationhouse and he told Police Officer Rivera to take his uniform off. § 87(2)(b) told Police Officer Rivera that he would be waiting in front of the stationhouse to “beat him up.” Police Officer Trancucci interjected at that point and said, “That’s enough, we’re not going there. You’re not doing that.” Police Officer Trancucci did not hear what if anything Police Officer Rivera replied to § 87(2)(b). Police Officer Trancucci did not say, nor did he hear any officer tell § 87(2)(b) “I can fuck you up.”

§ 87(2)(b) told Police Officer Trancucci that he was going to write down the officer’s license plate number. Police Officer Trancucci asked him why he wanted to do that, to which § 87(2)(b) replied that he knew people at the 52nd Precinct and planned on speaking to them. Police Officer Trancucci asked him if he wanted his name and shield number. § 87(2)(b) replied, “No fuck you, I don’t need shit from you. I’ll get that off the summons.” Police Officer Trancucci told § 87(2)(b) that the parking summons did not have his name or shield on it. Police Officer Trancucci told § 87(2)(b) that he would give him his name and shield number, and asked him if needed to get a pen and paper to write it down or if he wanted to write it in his phone. § 87(2)(b) said again, “No fuck you. I don’t need it [because] I’ll get it off the summons.” Neither Police Officer Trancucci nor any other officer stated that they did not “Have to give [them] shit.” Police Officer Trancucci handed § 87(2)(b) the summons and returned to his police vehicle. Police Officer Trancucci did not remember having any other interaction with § 87(2)(b) aside from his initial interaction. Police Officer Trancucci was never asked by § 87(2)(b) for his name and shield number. He did not observe Police Officer Mestre or Police Officer Moncion speak to or interact with § 87(2)(b) or § 87(2)(b).

§ 87(2)(g) As per Police Officer Mestre, she did not exit the car until she heard § 87(2)(b) become a “little loud.” Police Officer Mestre and Police Officer Moncion did not say, nor did they hear any other officer say, “We can do whatever the fuck we want.” Police Officer Mestre and Police Officer Moncion were consistent that they did not say nor did they hear any other officer tell § 87(2)(b) or § 87(2)(b) to, “Shut the fuck up.” Neither Police Officer Mestre, nor any other officer used profanity when speaking to § 87(2)(b) or § 87(2)(b). Police Officer Mestre stated that initially the officer’s demeanor was calm but when § 87(2)(b) returned to the vehicle yelling, they had to raise their volume so that they could be heard because § 87(2)(b) was not listening. As per Police Officer Moncion, when § 87(2)(b) returned to the car, he was swearing at officers and asked why he was being written a summons. § 87(2)(b) told Police Officer Rivera that he would wait for him outside and to fight him without his uniform. Both Police Officer Mestre and Police Officer Moncion acknowledged that § 87(2)(b) and Police

Officer Rivera had a conversation, but that they did not remember how Police Officer Rivera responded to § 87(2)(b). No officer threatened or challenged § 87(2)(b) to a fight. Neither § 87(2)(b) nor § 87(2)(b) asked for any other officer's names and/or badge numbers. Neither officer refused to provide their name and or shield number to § 87(2)(b) or § 87(2)(b). At no point did either officer tell or hear any other officer tell § 87(2)(b) or § 87(2)(b) that they "Didn't have to give [them] shit."

Summons Number § 87(2)(b), which was issued to § 87(2)(b) and § 87(2)(b)'s vehicle during this incident, has Police Officer Trancucci's last name is printed on the summons, as well as his Tax ID number and his command (Board Review 11).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegations A, B, C, D and E be unsubstantiated.**

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation G and K be unfounded.**

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation H and L be unfounded.**

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegations I, J and M be unsubstantiated.**

Allegation F-Abuse of Authority: Police Officer Edgar Rivera threatened § 87(2)(b) with the use of force.

As discussed above, it is undisputed that Police Officer Rivera and § 87(2)(b) had a "loud" dispute during this incident. § 87(2)(b) and § 87(2)(b) alleged that Police Officer Rivera threatened to fight § 87(2)(b) in saying that he asked § 87(2)(b) if he was going to "Come and see [him]" and told § 87(2)(b) "You know where I change my uniform. You can see me after that and telling him that "I could fuck you up."

Police Officer Rivera stated that § 87(2)(b) continuously swore at him and told Police Officer Rivera that he was going to “kick his ass.” Police Officer Rivera stated that he himself also became increasingly loud and that at some point, he told § 87(2)(b) to “prove it.” Police Officer Rivera also stated that he may have told § 87(2)(b) “You know where I change my uniform,” and asked § 87(2)(b) if he was going to “come and see [him].”

Police Officer Trancucci stated that he intervened in the conversation between Police Officer Rivera and § 87(2)(b) because § 87(2)(b) was threatening to “beat up” Police Officer Rivera, though he could not recall anything Police Officer Rivera said in response to § 87(2)(b). While Police Officer Moncion heard § 87(2)(b) threaten to fight Police Officer Rivera, she did not hear what, if any response Police Officer Rivera gave.

§ 87(2)(g)

Patrol Guide Section 221-04 states that an officer must apply no more force than the reasonable force necessary to gain compliance, control or custody of an uncooperative subject (Board Review 10).

§ 87(2)(g)

It is therefore recommend that **Allegation F** be **substantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date